

Regulatory Analysis of Institutional Preclusion, Disability Discrimination, and Administrative Negligence: The Case of Cian Mac Liatháin v. University of Galway

1. Executive Summary and Jurisdictional Framework

This report constitutes a forensic examination of the administrative and legal preclusion of Cian Mac Liatháin from the *Máistir Gairmiúil san Oideachas* (MGO) programme at the University of Galway (UG). While informed by the structural template of the Queen's University Belfast (QUB) discrimination inquiry, this analysis is firmly anchored in the jurisprudence of the Republic of Ireland. It addresses the intersection of three distinct but overlapping legal regimes: the professional regulation of teachers under the Teaching Council Acts 2001–2015; the prohibition of discrimination under the Equal Status Acts 2000–2018; and the common law duties of care regarding administrative negligence and personal injury.

The central thesis of this report is that the University of Galway has engaged in a systemic failure of administrative justice. By refusing admission to a qualified teacher on the grounds that he is "already qualified," the University has ignored the granular requirements of the Teaching Council for subject-specific registration, thereby enforcing an unlawful restraint of trade. Furthermore, the assertion that specific modules (Computer Science/Ríomheolaíocht) are unavailable constitutes a Material Error of Fact, rendering the decision *ultra vires* and exposing the institution to Judicial Review.

This case is not merely an academic admissions dispute; it is a disability rights case. The applicant, presenting with Complex Post-Traumatic Stress Disorder (CPTSD) and anxiety, sought the course as a mechanism for vocational rehabilitation and retraining. The University's summary refusal, devoid of the "factual inquiry" mandated by the Supreme Court in *Nano Nagle School v Daly*, represents a failure of reasonable accommodation. This report maps a dual-track legal strategy: pursuing the course place via the Workplace Relations Commission (WRC) and seeking damages for psychological injury and administrative negligence via the High Court, leveraging the precedent of *Culkin v Sligo County Council* to run parallel proceedings.

1.1 The "Boyle Bridge": A Structural Comparison of Jurisdictions

To align with the user's request to mirror the QUB investigation structure while applying Irish law, we must first establish the jurisdictional translation of the key legal concepts. The "Boyle

Bridge"—named for the late Professor Kevin Boyle, a pivotal figure in human rights law at both QUB and UG—serves as the conceptual framework for this translation.

Concept	Northern Ireland (QUB Context)	Republic of Ireland (UG Context)	Application to Case
Statutory Duty	Section 75, Northern Ireland Act 1998 (Due Regard)	Section 42, Irish Human Rights and Equality Commission Act 2014 (Public Sector Duty)	UG has a positive duty to eliminate discrimination and promote equality. ¹
Discrimination	Disability Discrimination Act 1995 (DDA)	Equal Status Acts 2000–2018	Refusal of access to education and failure to provide reasonable accommodation. ²
Standard of Care	Reasonable Adjustment (remove substantial disadvantage)	Reasonable Accommodation (Section 4 ESA) / <i>Nano Nagle</i> Test	Duty to provide special treatment/facilities unless cost is disproportionate. ⁴
Redress Forum	SENDIST / County Court	Workplace Relations Commission (WRC)	Primary forum for discrimination adjudication. ⁵
Damages	Vento Bands (Injury to Feelings)	Personal Injury Guidelines (Green Book)	Compensation for exacerbation of PTSD/Psychological Injury. ⁶
Administrative Review	NIPSO (Maladministration)	Office of the Ombudsman / High Court Judicial Review	Challenge to "Academic Judgment" defense via <i>Order 84</i> . ⁸

This comparative matrix demonstrates that while the statutes differ, the core obligation to proactively accommodate a student with a disability remains paramount in Irish law. The University of Galway's failure to adhere to the *Nano Nagle* standard—which requires a comprehensive inquiry into the feasibility of accommodation—mirrors the systemic failures identified in the QUB files, but opens distinct avenues for redress in the Irish High Court.

2. Forensic Analysis of the Refusal: Administrative Error vs. Academic Judgment

The University's rationale for refusal relies on two pillars: the "Redundancy Argument" (that the applicant is already qualified) and the "Availability Argument" (that the modules do not exist). Both pillars collapse under forensic scrutiny, revealing a decision-making process vitiated by error and potential negligence.

2.1 The Redundancy Argument: Misinterpreting Regulatory Value

The Admissions Coordinator, Natalie Walsh, stated: "*The main benefit of completing the MGO is to qualify as a second level teacher, a qualification you already have*".⁹ This statement reveals a fundamental ignorance of the Teaching Council's regulatory framework regarding "Adding a Subject."

2.1.1 The "Methodology Gap"

Under **Route 2 (Post-Primary)** registration, a teacher is not licensed to teach *all* subjects, but only those for which they meet the Curricular Subject Requirements. To add a new subject, such as Computer Science, a registered teacher must demonstrate three distinct competencies:

1. **Subject Content Knowledge:** 60 ECTS credits in the discipline (which the applicant holds via his Higher Diploma in Software Design ⁹).
2. **Essential Areas of Study:** Specific topics like Software Engineering and Data Structures.
3. **Subject-Specific Methodology:** A pedagogy module (typically 5–10 ECTS) focused on *how to teach that specific subject*.⁹

The "Methodology Gap" arises because most universities, including UG, bundle these methodology modules exclusively within their initial teacher education (MGO/PME) programmes. They are rarely offered as standalone CPD. Therefore, a teacher who has the content knowledge but lacks the methodology credits *must* access the MGO to finalize their registration.

By asserting the course offers "no benefit," the University is conflating the **General Teaching Licence** with the **Subject-Specific Endorsement**. For the applicant, the "benefit" is not the Master's degree per se, but the specific *Ríomheolaíocht* (Computer Science) pedagogy credits required to practice in that field. Denying access to these modules effectively operates as a **Restraint of Trade**, preventing a qualified professional from expanding their scope of practice despite having the requisite content knowledge.

2.1.2 The Failure of the "Occasional Student" Route

The University maintains a policy, **QA254 Occasional Students**, which explicitly allows individuals to study specific modules for a semester without registering for a full degree.¹⁰ This policy is the administrative mechanism designed to solve the "Methodology Gap."

- **The Error:** The admissions team failed to direct the applicant to this route or process his application under this policy once his qualified status was known.
- **The Implication:** Instead of facilitating the applicant's regulatory need, they applied a blanket exclusion ("no already qualified teachers") which is not supported by the Teaching Council regulations.¹¹ This rigidity, when applied to a disabled applicant seeking retraining, shifts from administrative oversight to discriminatory gatekeeping.

2.2 The Availability Argument: Material Error of Fact

The University explicitly stated: "*Neither of these two subjects are available on the MGO programme*".⁹

The Evidence:

The applicant provided screenshots and citations from the University's own curriculum management system (*Akari*) and website, which list:

- **ED6156: Ríomheolaíocht Bliain 1** (Computer Science Year 1) – 5 Credits.⁹
- **ED6256: Ríomheolaíocht Bliain 2** (Computer Science Year 2) – 5 Credits.¹²

Legal Significance: In Irish administrative law, a decision based on a **Material Error of Fact** is invalid. The admissions officer did not exercise "academic judgment" in determining the applicant was unsuitable; she made a clerical error regarding the existence of the curriculum. The High Court, in cases such as *Smart Gain Investment Ltd v Town Planning Board*, has recognized that a material error of fact can constitute a self-standing ground for Judicial Review.¹³ The Ombudsman's decision to close the complaint on the grounds of "academic judgment" ⁹ is therefore legally flawed. Determining whether a module exists in a database is a verification of objective fact, not an exercise of pedagogical discretion. This misclassification by the Ombudsman constitutes a **Jurisdictional Error**, rendering their decision amenable to *certiorari* (quashing) in the High Court.

2.3 The "Gaslighting" and Psychological Impact

The applicant describes the correspondence as "gaslighting".⁹ From a legal perspective, "gaslighting" in this context refers to the University's insistence on a false reality (that the modules do not exist) despite evidence to the contrary provided by the applicant.

- **Causation of Injury:** This administrative intransigence is not merely frustrating; for a person with CPTSD, it is a recognized trigger for psychological decompensation. The refusal to acknowledge objective reality (the existence of the modules) directly attacks the applicant's cognitive stability.
- **Foreseeability:** The University was on notice of the applicant's disability and his fragile mental state.⁹ Therefore, it was reasonably foreseeable that providing false information and summarily dismissing his valid corrections would cause "nervous shock" or exacerbate his condition. This grounds the claim in **Negligence**.

3. The Disability Analysis: Equal Status Acts and *Nano Nagle*

The University's handling of the application represents a *prima facie* breach of the **Equal Status Acts 2000–2018**. The core violation lies in the failure to provide **Reasonable Accommodation** for a professional seeking retraining.

3.1 The Duty of Factual Inquiry (*Nano Nagle v Daly*)

The Supreme Court judgment in *Nano Nagle School v Daly* IESC 63 is the seminal precedent governing reasonable accommodation in Ireland.⁴ It established that the duty to accommodate is **proactive** and procedural.

- **The Standard:** A service provider cannot simply refuse accommodation based on a cursory assessment. They must conduct a "factual inquiry" into the person's needs and the viability of various accommodation options (including the redistribution of tasks or, in this case, the modification of admissions criteria).
- **Application to UG:** Upon receiving the applicant's disclosure that the MGO was part of his "therapeutic recovery" and retraining⁹, the University was legally obliged to assess:
 1. Does the applicant need this specific course to maintain his career (vocational rehabilitation)?
 2. Can the "already qualified" rule be waived as an accommodation?
 3. Can the applicant be admitted as an "Occasional Student" to take only the necessary modules?
- **The Breach:** There is no evidence on the file that UG considered the applicant's disability in their decision-making. They applied a rigid, standard policy ("no benefit") to a non-standard applicant. This failure to inquire renders the refusal unlawful under Section 4 of the Equal Status Act.¹⁶

3.2 Retraining as Reasonable Accommodation

The WRC and the Labour Court have consistently held that **retraining** and **redeployment** are valid forms of reasonable accommodation.¹⁸

- **Context:** The applicant is a qualified teacher who, due to CPTSD, may require a change in teaching environment (e.g., moving to the smaller, distinct environment of a Gaelcholáiste) or subject matter (Computer Science vs. Maths) to remain in the workforce.
- **Discrimination:** By blocking the only route to this retraining (the MGO methodology modules), the University is effectively denying the applicant the accommodation necessary to continue his profession. This constitutes **Indirect Discrimination**: the "no already qualified" rule is neutral on its face but has a devastating impact on a disabled teacher who *needs* to retrain for health reasons, compared to a healthy teacher who merely *wants* to upskill.

3.3 Victimization and Reputation

The applicant references damage to his "reputation" and previous "false reports" by UG Security.⁹ Under Section 3(2)(j) of the Equal Status Act, **Victimization** occurs where a person is treated adversely because they have previously opposed discrimination or been involved in proceedings.² If the admissions decision was influenced—consciously or unconsciously—by the applicant's previous history of complaints or security interactions (labelled as "abusive communications" in the QUB comparator, but here implied as "reputational"), this is unlawful victimization. The involvement of the Dean of Students⁹, who has a disciplinary function, in an academic admissions appeal raises a concern of bias and suggests that the refusal may have been punitive rather than academic.

4. Strategic Redress: The Parallel Track

To maximize the likelihood of success, the applicant must pursue a "pincer movement" strategy, utilizing the **Workplace Relations Commission (WRC)** for the discrimination claim and the **High Court** for the administrative and personal injury claims.

4.1 The Doctrine of Parallel Proceedings (*Culkin v Sligo*)

The University may attempt to argue that the applicant must choose between the WRC and the Courts (Election of Remedies). However, the Irish Court of Appeal decision in *Culkin v Sligo County Council* IECA 104 explicitly clarifies this.²⁰

- **The Principle:** An individual is not precluded from pursuing a personal injuries claim in the High Court merely because they have lodged a discrimination complaint with the WRC, provided the claims address different causes of action arising from the same facts.
- **Application:**
 - **WRC Claim:** Focuses on the statutory breach of the Equal Status Act (refusal of access, failure to accommodate). The remedy is compensation for the *act of discrimination* and an order to provide the course.
 - **High Court Claim:** Focuses on the common law tort of **Negligence** (careless processing of the application, error of fact) and the resulting **Personal Injury** (exacerbation of CPTSD). The remedy is damages for pain, suffering, and loss of opportunity.
- **Strategy:** The applicant can, and should, run these cases in parallel. The WRC claim is faster and cost-risk free, while the High Court claim carries the threat of significant damages for the psychological injury.

4.2 High Court Action: Judicial Review vs. Plenary Summons

The applicant has two distinct High Court options which can be deployed simultaneously:

4.2.1 Judicial Review (Order 84)

- **Target:** The decision of the Ombudsman to close the file⁹ and/or the University's refusal decision.
- **Grounds:**
 1. **Error of Fact:** The claim that modules do not exist is verifiable false.¹³
 2. **Unreasonableness:** It is irrational to refuse a qualified teacher entry to a course required for registration on the grounds that they are "already qualified."
 3. **Jurisdictional Error:** The Ombudsman erred in law by classifying a factual dispute as "academic judgment".²⁴
- **Time Limits:** An application for leave must be made within **3 months** of the decision. If the Ombudsman's decision was October 30, 2025, the deadline is **January 30, 2026**. Extensions can be granted for "good and sufficient reason" (Order 84 Rule 21), such as the delay caused by pursuing internal appeals.⁸

4.2.2 Plenary Summons (Personal Injury/Negligence)

- **Target:** The University of Galway.
- **Cause of Action:** Negligence, Negligent Misstatement, Breach of Statutory Duty.
- **Argument:** The University owed a duty of care to process the application competently. By stating modules were unavailable (Negligent Misstatement) and refusing admission on false grounds, they breached this duty. This breach caused "nervous shock" (exacerbation of CPTSD) and economic loss (delay in qualifying).
- **PIAB:** A personal injury claim must usually be authorized by the Personal Injuries Assessment Board (PIAB). However, under *Dillon v Irish Life* IESC 37, claims for "pure" distress arising from data breaches or administrative wrongs may sometimes bypass PIAB.²⁵ Given the medical diagnosis of CPTSD exacerbation, a PIAB application is the safer first step for the injury component.

5. Assessment of Damages and Quantum

The applicant requested an analysis of civil damages. The potential quantum is significant, comprising three distinct heads of loss.

5.1 General Damages: Psychological Injury (PTSD)

The *Personal Injury Guidelines* (adopted by the Judicial Council in 2021) set strict bands for compensation.⁶

- **Severe PTSD:** €60,000 – €120,000. (Permanent effects, preventing work/functioning).
- **Serious PTSD:** €35,000 – €80,000. (Significant disability, some recovery expected).
- **Moderate PTSD:** €10,000 – €35,000. (Largely recovered, not grossly disabling).
- **Exacerbation:** As the applicant had pre-existing CPTSD, the University is liable for the *exacerbation* caused by their negligence. Under the "Eggshell Skull" rule, they are liable for the full extent of the worsening, even if a person without CPTSD would not have suffered as severely. If the refusal caused a relapse requiring medical intervention⁹, the damages would likely fall in the **Serious** or **Moderate** bands, potentially **€25,000 – €50,000** for the exacerbation alone.

5.2 Special Damages: Loss of Opportunity

The refusal delays the applicant's ability to teach Computer Science by at least one academic year.

- **Calculation:** Loss of potential earnings (e.g., substitution hours in CS, higher employability) and the cost of the application fee (€100).
- **Legal Basis:** Damages for "loss of opportunity" are recoverable in contract and tort where the plaintiff has been denied a chance to advance their career due to the defendant's wrong.²⁷

5.3 Discrimination Redress (WRC)

- **Maximum Award:** €15,000 for prohibited conduct under the Equal Status Acts.²⁹
- **Specific Performance:** The WRC can order the University to take a specific course of action—i.e., **admit the applicant to the course** or process the application as an

Occasional Student. This non-monetary remedy is arguably the most valuable outcome for the applicant's career.

6. Data Protection and the "Right to Rectification"

A novel but effective angle for this case lies in the **General Data Protection Regulation (GDPR)**.

- **Inaccurate Data:** The University is processing the applicant's application based on inaccurate data—specifically, the internal record that "Computer Science modules are unavailable."
- **Article 16 (Right to Rectification):** The applicant has a statutory right to have this inaccurate data corrected. He can demand that his application record be updated to reflect that modules ED6156 and ED6256 are available.³⁰
- **Article 82 (Compensation):** The applicant can claim compensation for "non-material damage" (distress) caused by the infringement of his data rights. The Supreme Court in *Dillon v Irish Life* confirmed that distress is compensable under GDPR, even without a recognized psychiatric injury.²⁶ This provides a route to damages that bypasses the PIAB process and the stricter tests of negligence.

7. Actionable Roadmap and Recommendations

To dismantle the University's refusal and secure both the course place and damages, the following roadmap is recommended:

Phase 1: Immediate Administrative Action (Week 1-2)

1. **"Occasional Student" Application:** Immediately submit a formal application under **Policy QA254** specifically for modules ED6156 and ED6256. Explicitly state: *"I am a qualified teacher requiring these modules for Teaching Council registration. I am applying under QA254 to bridge this methodology gap."* A refusal here removes the "already qualified" defense (as QA254 is non-degree) and crystallizes the discrimination claim.¹⁰
2. **GDPR Subject Access Request:** Request all internal communications regarding the application and the decision-making process concerning module availability. This will likely expose whether the "unavailability" claim was a known error or a pretext.³¹
3. **Data Rectification Request:** Formally request, under Article 16 GDPR, that the University correct its records to show that ED6156/ED6256 are active modules.

Phase 2: Regulatory and Legal Filings (Month 1-3)

4. **WRC Complaint:** Lodge a complaint under the Equal Status Acts citing **Section 4 (Reasonable Accommodation)** and **Section 3 (Victimization)**. The deadline is 6 months from the refusal; ensure this is met.³²
5. **Judicial Review (High Court):** If within the 3-month window of the Ombudsman's decision (Oct 30, 2025 -> Jan 30, 2026), issue leave proceedings challenging the

decision on the grounds of **Material Error of Fact** and **Jurisdictional Error** (misapplication of "academic judgment").⁸

6. **PIAB Application:** Submit a claim to the Personal Injuries Assessment Board for the exacerbation of CPTSD/Anxiety to stop the clock on the Statute of Limitations (2 years).³³

Phase 3: The "Boyle Bridge" Leverage

7. **Reputational Strategy:** Leverage the legacy of Professor Kevin Boyle. Frame the case not as an attack on the University, but as a demand that it live up to the human rights standards championed by its own celebrated alumni. This narrative can be powerful in settlement negotiations, positioning the "Occasional Student" admission as a restorative act aligning with the University's ethos.

8. Conclusion

The University of Galway has constructed a "Catch-22" for qualified teachers: it demands they re-qualify to add subjects, yet bans them from the qualification course because they are "already qualified." When applied to a teacher with a disability who requires retraining for vocational rehabilitation, this policy violates the **Equal Status Acts**.

The University's defense collapses on the "Material Error of Fact" regarding module availability. This error pierces the shield of "academic judgment" and exposes the institution to Judicial Review and claims of Negligent Misstatement. By pursuing the *Culkin* strategy of parallel proceedings—fighting for the course in the WRC and damages in the High Court—the applicant can dismantle the administrative deadlock and vindicate his right to professional progression.

Table 1: Summary of Strategic Legal Avenues

Legal Avenue	Ground for Action	Primary Remedy	Time Limit
WRC (Equal Status)	Disability Discrimination (S.4 Failure to Accommodate)	Order to Admit to Course + €15k Comp.	6 Months
High Court (JR)	Ombudsman Decision (Error of Fact / Jurisdiction)	Quashing of Ombudsman Decision	3 Months
High Court (Plenary)	Negligence / Breach of Duty / Nervous Shock	Damages for PTSD Exacerbation (€25k+)	2 Years
Data Protection (DPC)	Article 16 (Rectification) / Article 82 (Damage)	Correction of Records + Distress Damages	N/A
Internal (QA254)	"Occasional Student"	Admission to Specific	Immediate

	Policy Application	Modules	
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This report is an expert analysis based on the provided documentation and Irish law. It does not constitute formal legal advice. The applicant is strongly advised to consult a solicitor immediately to protect the strict time limits for Judicial Review and PIAB applications.

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